“CHAIN”

Plea Agreements, Guilty Pleas and the Limits of Criminal Justice

Organised financial crime, tax evasion, money laundering, confiscation and equality in sentencing

SCHOLARLY AND PROFESSIONAL LEGAL PAPER

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METHODOLOGICAL AND ETHICAL NOTE

Conflict-of-interest disclosure: The author has not represented and does not represent any defendant, legal entity or other participant in the “Chain” proceedings.

This paper is a scholarly and professional legal analysis of publicly available information concerning the case known as “Chain” (Macedonian: Sindžir), the relevant rules of North Macedonian criminal and criminal-procedure law, and European standards governing negotiated criminal justice. No prosecutorial allegation is treated as established guilt unless it has been confirmed by a final and binding judicial decision. Where statements of the Public Prosecutor’s Office are relied upon, they are cited as sources for the content of prosecutorial allegations and procedural steps, not as substitutes for judicial findings of fact.

The purpose of the paper is not to offer a personal assessment of any particular defendant, prosecutor or judge, nor to advocate an outcome in pending proceedings. Its purpose is to examine systematically the relationship between procedural efficiency, guilty pleas, plea bargaining, restitution, confiscation, individualisation of sentence and the public interest. In that sense, “Chain” is used as a case study for a broader analysis of the North Macedonian model of negotiated criminal justice.

ABSTRACT

The criminal case publicly known as “Chain” provides a significant case study for contemporary North Macedonian criminal law and criminal procedure. Its legal relevance lies not only in the scale of the prosecutorial allegations, the number of natural and legal persons involved, and the alleged loss to the State Budget, but also in the different procedural routes through which individual criminal liability has been, or continues to be, determined: plea agreements concluded before the main hearing, guilty pleas entered during trial, and ordinary evidential proceedings against the remaining defendants. This combination makes it possible to examine whether the existing system offers sufficiently clear and reviewable criteria for procedural sentence mitigation, individualisation and equality in sentencing.

The central thesis is that plea bargaining and guilty pleas are legitimate and necessary instruments of modern criminal procedure, but their use in organised, high-value financial crime must be accompanied by enhanced safeguards of legality, voluntariness, proportionality, individualisation, confiscation, judicial scrutiny and transparent reasoning. Particular attention is devoted to the relationship between repayment of fiscal loss, deprivation of criminal proceeds and the choice between immediate and suspended custodial sentences. The comparative analysis considers the standards developed by the European Court of Human Rights, especially *Natsvlishvili and Togonidze v. Georgia*, and the concept of a voluntary and informed waiver of procedural rights.

Keywords: “Chain”; plea agreement; guilty plea; organised crime; tax evasion; money laundering; confiscation; restitution; Article 6 ECHR; proportionality; sentencing policy.

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1. INTRODUCTION

Organised financial crime is among the most difficult forms of criminality to detect, prove and sanction. Unlike conventional offences, where a criminal event can often be reconstructed through a direct connection between an offender, a victim and a limited body of evidence, financial crime is carried out through legal entities, business records, invoices, tax returns, bank transfers, loans, set-offs, cash withdrawals and a range of formally lawful legal transactions. Each individual act may appear neutral; its criminal-law significance often emerges only when a series of transactions is analysed as a functional whole.

The “Chain” case is a particularly suitable case study precisely because of this complexity. According to official prosecutorial statements, the investigation began in October 2023 and encompassed numerous natural and legal persons, with allegations of criminal association, tax evasion and money laundering. The Public Prosecutor’s Office linked the alleged scheme to business and tax transactions extending over several years, and a substantial alleged loss to the State Budget was also publicly reported. At later stages, some persons entered into plea agreements, some pleaded guilty at the main hearing, while proceedings continued against others.

These different procedural routes give the case broader scholarly significance. “Chain” is not merely an example of alleged organised tax crime; it is also a test of how the North Macedonian system balances the efficiency of criminal proceedings against the principles of fairness, equality, individualisation and the public interest. Where some defendants receive suspended sentences after early plea agreements, others receive immediate custodial sentences after guilty pleas at trial, while still others continue to contest the charges, the question arises whether those differences result from clearly articulated legally relevant factors or from discretion whose criteria are insufficiently visible.

This paper proceeds from the view that plea bargaining should be treated neither as an institutional weakness nor as an automatic indicator of efficiency. It is an instrument. Its legitimacy depends on the

manner in which it is used. In cases of substantial public interest, it is necessary to see not only that a defendant has pleaded guilty and that a particular amount has been repaid, but also why the particular combination of admission, restitution, confiscation and sentence fulfils the functions of criminal law.

The paper therefore follows a central analytical proposition: procedural economy matters, but it is not sufficient; repayment of loss matters, but it is not punishment; a guilty plea is relevant, but it must not turn the exercise of the right to trial into a de facto sentencing disadvantage; different sentences are permissible, but they must be explicable by reference to different facts. From these propositions, the paper develops a proportionality model that may have practical value beyond the particular case.

2. SUBJECT, AIMS AND RESEARCH QUESTIONS

The subject of the paper is the legal architecture of negotiated criminal justice in complex cases of organised financial crime. The specific “Chain” case is used as an empirical foundation, but the analysis is directed towards general principles: when a plea agreement is justified; how an early guilty plea should be valued; what place should be given to voluntary restitution; what role confiscation should play; how equality between co-defendants can be safeguarded; and how intensive judicial scrutiny should be.

The principal research question is: under what normative, procedural and substantive conditions can plea bargaining and guilty pleas in organised financial-crime cases secure efficiency without undermining the fairness of criminal justice? This question is developed through the following subsidiary questions:

1. Which criteria justify a more lenient sentence following an early guilty plea or plea agreement?

2. Should full payment of evaded tax carry the same weight as the voluntary return of criminal proceeds that would otherwise have remained concealed?

3. When is the difference between a suspended and an immediate custodial sentence rationally explicable, and when does it raise a problem of consistency?

4. How fully should the prosecution and the court explain the reasons for an agreed sentence?

5. How can the defendant’s financial means be prevented from becoming an indirect advantage in sentencing policy?

6. Which European standards are relevant to the voluntariness of a guilty plea and the waiver of the right to a full trial?

7. Which *de lege ferenda* amendments or guidelines would increase the transparency and predictability of the system?

The aim is twofold. First, to provide a systematic analysis of “Chain” without slipping into an impermissible presumption of guilt in relation to persons whose cases have not been finally determined. Secondly, to propose a practical analytical model that prosecutors, judges, defence lawyers and legal scholarship may use when assessing future plea agreements in cases involving substantial financial value and multiple defendants.

3. HYPOTHESES AND METHODOLOGY

3.1. Principal and subsidiary hypotheses

The principal hypothesis is that plea bargaining is a legitimate and useful institution of criminal procedure, but in organised financial crime its legitimacy depends upon a clearly reasoned connection between the defendant’s factual role, the gravity of the offence, the amount of loss and benefit, the degree of co-operation, restitution, confiscation and the proposed sentence.

H1: an early guilty plea may legitimately have greater procedural value than a plea entered after a substantial part of the evidence has been heard, but the difference must not amount to a de facto penalty for exercising the right to trial;

H2: compensation for loss is a significant mitigating factor, but it cannot be the functional equivalent of punishment;

H3: confiscation has an independent preventive and restorative function and must be analysed separately from a fine and the collection of tax;

H4: different sentences for co-defendants are permissible only where the differences are grounded in objectively relevant facts;

H5: the greater the public interest, the stronger the requirement for transparent and reviewable reasoning of the negotiated outcome.

3.2. Methodological approach

The paper applies normative-doctrinal, analytical, comparative and case-study methods. The normative analysis focuses on the Criminal Code and the Law on Criminal Procedure, in particular the provisions on criminal association, tax evasion, money laundering, liability of legal entities, plea agreements and guilty pleas. The comparative section draws on European standards concerning the voluntary waiver of procedural rights and judicial scrutiny of negotiated outcomes.

Methodologically, it is essential to distinguish four levels of factual certainty: (1) suspicion at the investigative stage; (2) a prosecutorial allegation; (3) a fact admitted by a defendant and accepted by a judicial decision; and (4) a fact established by a final and binding judgment. This distinction is particularly important in multi-defendant cases, because one person’s admission must not automatically become a presumption of another person’s guilt.

The empirical section uses only information made public by institutional or other relevant public sources, with a factual cut-off date of 26 September 2026 and an editorial verification of sources completed on 28 September 2026. Where the full reasoning of a judgment is not publicly available, the paper does not conclude that a sentence is “right” or “wrong”; instead, it identifies the information that would be necessary for such an assessment. This approach preserves scholarly neutrality, respects the presumption of innocence and prevents judicial fact-finding from being replaced by media reconstruction.

4. FACTUAL AND PROCEDURAL FRAMEWORK OF THE “CHAIN” CASE

4.1. Opening of the case and principal prosecutorial allegations

According to official information published by the Public Prosecutor’s Office, on 30 October 2023 an investigation was opened against 26 owners and managers of 28 legal entities, following a pre-investigation lasting several months into offences concerning public finances, payment operations and the economy. The statement referred to suspicions of criminal association, tax evasion and money laundering, with alleged damage to the State Budget amounting to MKD 490,808,618, approximately EUR 7.98 million.[1]

According to the prosecution’s account, some of the legal entities had presented business relationships and documentation with tax implications, while certain financial flows were linked to cash withdrawals and subsequent disposal of funds. For scholarly analysis, it is important to note that such a structure requires the reconstruction of several parallel lines: invoice and accounting entry; tax treatment; bank transfer; cash withdrawal; beneficial recipient; and any connection between formally separate legal entities.

4.2. Duration and complexity of the alleged scheme

Public prosecutorial information links the conduct to a period of several years, which is typical of complex tax schemes. Duration has a dual significance. Evidentially, a long period generates a large volume of

[1] Public Prosecutor’s Office of the Republic of North Macedonia, official statement concerning the “Chain” case, 30 October 2023, titled “26 natural persons and 28 legal entities covered by ‘Chain’” (publicly available institutional source).

documents and transactions; for sentencing purposes, repeated and organised conduct may be relevant to the gravity of the offence, but it must be established individually in relation to each defendant.

Multi-defendant cases carry a risk of the “collectivisation” of guilt: a scheme is described as a whole, after which each person may come to be perceived as equally responsible. Criminal law requires the opposite. The specific role, conduct, duration, intent and causal contribution of each participant must be established. Such individualisation is equally important to a conviction and to a plea agreement.

4.3. The first plea agreements

In June 2024 the Public Prosecutor’s Office announced that six natural persons and six legal entities had initiated plea-bargaining proceedings and that a pre-trial judge had accepted the proposed agreements. The same announcement published the specific sanctions, providing a rare empirical insight into negotiated sentencing practice.[2]

According to the published information, five of the six natural persons received suspended sentences and one person received an immediate custodial sentence of one year. The legal entities received financial penalties, while the prosecution emphasised that unpaid tax liabilities of MKD 50,646,400 had been settled, together with additional amounts related to the money-laundering charge. The total amount presented by the prosecution as returned or paid into the State Budget, including penalties, was MKD 59,658,568.[3]

4.4. Guilty pleas at the main hearing

Guilty pleas followed during the main hearing in July 2024. Publicly available information indicates that immediate custodial sentences were more common in these cases. On 9 July, according to public reports, five of six defendants who pleaded guilty received immediate custodial sentences; on 17 July, three of four received immediate imprisonment. This difference from the early plea agreements is analytically relevant, but does not in itself establish inconsistency. A valid comparison requires information about role, amount, restitution, previous convictions and the stage at which the plea was entered.[4]

4.5. Later procedural developments

In September 2026 a final and binding outcome concerning Ljupcho Pecov was also publicly reported. According to information relayed from the court, judgment was delivered on 24 August 2026 following a guilty plea and became final on 21 September 2026 because no appeal was lodged. The sentence comprised two years’ imprisonment suspended for an operational period of five years, a fine of EUR 8,000, and a ten-year prohibition on acting as a founder or manager of a legal entity or on managing, directing or disposing of a legal entity’s assets. This outcome is analytically relevant to the question of consistency in sentencing policy, but without the full reasoning of the judgment it would not be methodologically justified to characterise the sentence as either unduly lenient or unduly severe.[5]

[2] Public Prosecutor’s Office of the Republic of North Macedonia, “Nearly EUR 1,000,000 returned to the State Budget through the Chain plea agreements”, 25 June 2024.

[3] Public Prosecutor’s Office of the Republic of North Macedonia, “Nearly EUR 1,000,000 returned to the State Budget through the Chain plea agreements”, 25 June 2024.

[4] MRT, “Judgment in ‘Chain’”, 9 July 2024; MRT, “Judgment for four defendants who pleaded guilty in the ‘Chain’ case”, 17 July 2024.

[5] Telma, 24 September 2026, information concerning judgment KOK 53/26: judgment of 24 August 2026, final on 21 September 2026; two years’ imprisonment suspended for a five-year probationary period, a fine of EUR 8,000 and a ten-year prohibition on specified management activities.

5. NORMATIVE FRAMEWORK: CRIMINAL CODE AND LAW ON CRIMINAL PROCEDURE

5.1. Criminal association

The criminal-law qualification of criminal association is particularly significant because it shifts the analysis from an isolated offence to an organised structure. The existence of a form of association and the individual’s specific role within it must be established. For sentencing purposes, it is insufficient that all persons are formally covered by the same legal classification. An organiser, co-ordinator, active member and person with a limited contribution are not necessarily in the same position.

5.2. Tax evasion

In tax-evasion cases, the central matters are the existence of a tax liability, the specific act or omission by which it is avoided, the offender’s mental element and the financial consequence. In complex business structures, proof requires careful differentiation between aggressive tax planning, accounting error and intentional criminal conduct. Not every irregularity is a criminal offence, and not every invoice with a tax effect automatically proves intent.

5.3. Money laundering and criminal proceeds

Money laundering introduces an additional analytical layer: it is necessary to establish the connection between the property and a predicate offence, as well as the specific act by which proceeds are concealed, transformed, transferred or integrated. In such cases, financial tracing is as important as conventional testimonial evidence. The banking route of the funds, temporal connections and the beneficial recipient are key elements of reconstruction.

5.4. Liability of legal entities

Criminal liability of a legal entity permits the corporate body to be sanctioned where the statutory conditions are met, but it must not become a formal add-on to the liability of a natural person. It is necessary to analyse whether the legal entity was a genuine business undertaking, an instrument through which the offence was committed, a beneficiary of the pecuniary gain, or a combination of these functions. A sanction imposed on the legal entity serves a different preventive purpose from a sanction imposed on its manager or owner.

5.5. Plea agreements under the Law on Criminal Procedure

The North Macedonian Law on Criminal Procedure regulates plea bargaining in Articles 483-490. The model is structured so that the public prosecutor and the suspect negotiate the type and level of sanction, with mandatory participation of defence counsel, while the court does not participate in the negotiations but reviews the proposed outcome.[6]

Judicial scrutiny is essential. If the judge considers that the evidence and circumstances relevant to sentencing do not justify the proposed measure, the proposed plea agreement should be rejected. If accepted, the court does not “rewrite” the agreed sanction but embodies it in a judgment. The quality of the system therefore depends on two successive exercises of discretion: prosecutorial discretion during negotiation and judicial discretion in reviewing legality and justification.

[6] Law on Criminal Procedure, provisions governing judgment on the basis of a proposed plea agreement, Articles 483-490.

6. PLEA BARGAINING AS AN INSTITUTION OF NEGOTIATED CRIMINAL JUSTICE

6.1. Reasons for the institution

Modern criminal justice systems cannot take every case through a fully contested hearing in which all evidence is adduced. Complex cases impose an enormous procedural burden, while excessive duration can diminish the value of justice for both the defendant and society. Plea bargaining can provide procedural economy, faster finality, reduced costs and the redirection of resources towards genuinely contested cases.

Procedural economy, however, is not a self-sufficient value. Criminal law is not a private-law dispute in which the parties may freely “trade” in any outcome. The prosecutor exercises a public function and the court exercises public authority. The negotiated element must therefore remain embedded within a framework of statutory limits, legal representation and judicial review.

6.2. What constitutes legitimate sentence mitigation?

A rational basis for a more lenient sentence following an early guilty plea may be found in several factors: acceptance of responsibility, reduced procedural burden, avoidance of repeated victimisation of witnesses, facilitation of confiscation and restitution, and the possibility that the plea may have evidential value in reconstructing a broader criminal structure. Not all of these factors will be present in every case.

It is therefore not enough for the reasoning merely to state that the defendant “pleaded guilty”. It is necessary to identify what the plea actually contributed. Where the prosecution already possesses complete documentation, banking trails and independent evidence, the procedural value of a plea may differ from a case in which the defendant discloses previously unknown assets, additional participants or crucial documentation.

6.3. Admission versus co-operation

Practice should distinguish a simple admission from qualified co-operation. A simple admission means accepting the prosecution’s factual account and legal responsibility. Qualified co-operation may include identifying criminal proceeds, providing authentic documents, explaining complex transactions, revealing other participants, or supplying information that would otherwise be difficult to obtain. The latter category has greater instrumental value and may legitimately carry greater weight in sentencing policy.

7. GUILTY PLEA AT THE MAIN HEARING

7.1. Distinction from a pre-trial plea agreement

The provisions of the Law on Criminal Procedure governing judgment on the basis of a guilty plea, including Article 381(3)-(4), are relevant to a guilty plea at the main hearing, whereas plea bargaining is regulated by Articles 483-490. These two procedural routes must be analysed separately even though, in practice, both may result in a more expeditious conclusion of proceedings.

A guilty plea at the main hearing and a proposed plea agreement are not identical institutions. Under a plea agreement, the sanction is the subject of prior agreement between the prosecutor and the defendant, subject to judicial scrutiny. Where a guilty plea is entered during trial, the court determines the sentence within the statutory framework and in light of the particular circumstances. This difference matters because the procedural stage and the extent of resources saved may differ.

7.2. The procedural value of timing

The earlier a guilty plea is entered, the greater its procedural value may be. A plea before indictment may avoid the main hearing altogether; a plea at the first hearing may save a substantial part of the

proceedings; a plea after the principal evidence has been heard has a smaller effect on procedural economy. This does not mean that sentence should be calculated mechanically by reference to a calendar, but timing is a legitimate factor where it is explained in terms of resources actually saved.

7.3. The danger of an excessive sentencing differential

The system becomes problematic, however, if the difference between the sentence following a guilty plea and the possible sentence after a full trial is so great that a defendant cannot rationally afford to exercise the right to trial. At that point, an “incentive” approaches de facto pressure. European standards do not prohibit negotiated benefits, but they require any waiver of procedural rights to be voluntary, informed and protected against abuse.

8. EMPIRICAL ANALYSIS OF PUBLICLY CONFIRMED OUTCOMES

8.1. The first six plea agreements - natural persons

Person	Legal classification (abridged)	Sentence	Execution	Probation	Fine
D.I.	association + continued tax evasion	2 years	suspended	5 years	MKD 183,900
Gj.L.	association + continued tax evasion	1 year 6 months	suspended	3 years	MKD 183,900
V.U.	association + tax evasion/aiding	1 year	immediate	-	MKD 310,000
E.M.	association + continued tax evasion	1 year 6 months	suspended	3 years	MKD 183,900
R.P.	association + tax evasion + money laundering	2 years	suspended	5 years	MKD 306,500
H.K.	association + tax evasion + money laundering	2 years	suspended	4 years	MKD 183,900

The table shows that suspended sentences predominated in the group of early plea agreements. This is a descriptive fact, not an evaluative conclusion. To assess whether the distribution was proportionate, it would be necessary to know the factual roles, individually attributable amounts, previous convictions, degree of initiative and co-operation, and the reasons why one person received an immediate custodial sentence.

8.2. Comparison by procedural group

Procedural group	Number of persons	Immediate custodial sentences	Suspended sentences	Publicly known aggregate
Plea agreements before main hearing	6	1	5	detailed individual sanctions
Guilty pleas, 09.07.2024	6	5	1	10 years 5 months’ immediate imprisonment
Guilty pleas, 17.07.2024	4	3	1	4 years 11 months’ immediate imprisonment
Later outcome, 2026	1	0	1	2 years suspended / 5 years’ probation

There is an evident difference between the distribution of outcomes under the early plea agreements and those following guilty pleas at the main hearing. The statistical difference, however, is not proof of unlawfulness or inequality. It identifies a research question. The early agreements may have involved persons with lesser roles, greater restitution or greater procedural contribution; guilty pleas at the main hearing may have concerned different factual positions. In the absence of the full judgments, scholarly accuracy requires caution.

8.3. What can and cannot be concluded

- It can be concluded that the same broader case contains several modes of disposal and different sentencing outcomes.

- It can be concluded that restitution was expressly identified by the prosecution as a relevant consideration in plea bargaining.
- The type of sentence alone cannot establish inequality.
- One person’s guilty plea cannot be used automatically as proof of another person’s guilt.
- Without the full reasons, it cannot be determined whether the distinction between suspended and immediate custodial sentences was optimally individualised.

9. SENTENCING POLICY, INDIVIDUALISATION AND EQUALITY

9.1. Equality does not mean identical sentences

The principle of equality does not require every person charged in the same case to receive an identical sentence. On the contrary, individualisation is an essential component of a fair sentence. Two defendants may face the same legal classification but differ markedly in factual gravity: one may have initiated the scheme and co-ordinated several entities, while another carried out only a limited number of acts. Mechanical equalisation would be as unjust as unexplained differential treatment.

9.2. Three levels of comparability

Three levels are proposed for meaningful comparison of sentences. **Legal comparability:** are the persons liable for the same or substantially similar offences? **Factual comparability:** are their roles, amounts, duration and benefits similar? **Procedural comparability:** was the guilty plea entered at the same stage and with a similar degree of co-operation? Only where sufficient similarity exists at all three levels does a difference in sentence require particularly persuasive explanation.

9.3. Reasoning as a safeguard against arbitrariness

Reasoning converts discretion into a reviewable legal decision. Without reasons, even a properly individualised sentence may appear arbitrary; with sound reasons, a substantial difference may be entirely understandable. This is especially important in plea agreements because the public does not see the full evidential hearing. In cases of high public interest, it should therefore be clear which factors justified the negotiated measure.

10. RESTITUTION, CONFISCATION AND THE PUBLIC INTEREST

10.1. The distinction between paying tax and punishment

Payment of tax that was lawfully due is not punishment in a substantive sense. It restores the fiscal position that should have existed in the absence of the offence. If such payment were automatically treated as a sufficient “price” for a suspended sentence, it could send the wrong message that the risk of tax crime is limited to paying, if detected, what was due in any event.

10.2. Return of criminal proceeds

Confiscation or voluntary return of criminal proceeds serves a different function: crime must not remain economically profitable. The principle that “crime should not pay” is a central strand of contemporary policy against organised and financial crime. Yet this measure is not a complete substitute for punishment either; it removes the benefit, whereas punishment expresses the State’s response to unlawful conduct and serves preventive purposes.

10.3. Risk of privileging the financially stronger defendant

If the ability to make full and prompt restitution becomes the dominant influence on sentence, the system may inadvertently favour the financially stronger defendant. Two persons of comparable culpability may

have very different liquidity; the person able immediately to pay a large sum may secure a materially better outcome. It is therefore necessary to consider not merely the absolute amount paid, but also the defendant’s attitude to the obligation, genuine ability to pay, voluntariness and the remaining sentencing factors.

10.4. The public interest is broader than recovery of public revenue

The public interest in cases of tax and organised financial crime encompasses fiscal revenues, equality among taxpayers, fair competition, integrity of commercial dealings, prevention of money laundering, general deterrence and confidence in institutions. A fiscally successful plea agreement is therefore not automatically an optimal criminal-law outcome. The whole picture must be assessed.

11. LEGAL ENTITIES AND CORPORATE LIABILITY

11.1. The legal entity as the subject of a sanction

In financial crime, legal entities may be genuine commercial undertakings, instruments for concealing transactions, recipients of benefits, or a combination of these functions. A sanction imposed on a legal entity should therefore be linked to its factual role, rather than merely to the formal fact that it was managed by an accused natural person.

11.2. Corporate prevention

A financial penalty imposed on a legal entity has limited preventive value if it is not accompanied by mechanisms capable of preventing repetition of the same pattern. Depending on the statutory conditions and the particular case, prohibitions, changes in management, enhanced compliance arrangements, deprivation of benefits and other consequences may be relevant. Where companies have in practice served solely as vehicles for criminal activity, the question of their future status differs from that of a genuine business affected by an isolated criminal incident.

12. PROVING ORGANISED FINANCIAL CRIME

12.1. From transaction to structure

The most useful evidential approach in complex financial cases is to reconstruct the chain of transactions. Rather than beginning solely with the person, the documentary trail is followed: contract or invoice, accounting entry, tax return, payment order, bank statement, onward transfer, cash withdrawal and final recipient. Individuals are then linked to specific points in that chain.

12.2. Digital and physical evidence

Electronic communications, accounting systems, electronic banking and metadata may have substantial evidential value, but they require authenticity and integrity. Where the volume of data is large, financial expert analysis must be reproducible: the defence must be able to understand the sources and methodology from which the final amount was derived.

12.3. The defence and effective challenge

The rights of the defence require the defendant and defence counsel to have a genuine opportunity to challenge methodology, sources and causation. This right does not disappear in a negotiated outcome. On the contrary, before voluntarily waiving a full hearing, the defendant must have sufficient information to understand what is being admitted and the evidence on which the prosecution is based.

13. THE ECTHR AND EUROPEAN STANDARDS ON PLEA BARGAINING

13.1. *Natsvlishvili and Togonidze v. Georgia*

The leading European authority is *Natsvlishvili and Togonidze v. Georgia*, in which the European Court of Human Rights accepted that plea bargaining is not, in itself, incompatible with Article 6 of the European Convention. The Court emphasised that a waiver of procedural rights must be unequivocal, accompanied by minimum safeguards against abuse, and not contrary to any important public interest. In the particular case, significance was attached to the defendant’s own initiative, access to the case materials, representation by lawyers of his choice, and genuine judicial scrutiny.[7]

The importance of the judgment lies in the fact that the European Court did not treat a negotiated outcome as a matter of purely private consent. Waiver of the right to a full hearing must be unequivocal and accompanied by safeguards commensurate with the importance of the right being relinquished. Where the defendant faces substantial penal exposure, detention or major proprietary consequences, the quality of those safeguards assumes particular importance.

13.2. A four-part European test

The following four-part test is the author’s synthesis of the relevant European standards; it is not a formula named or applied under that title by the ECtHR. Its purpose is analytical: to make visible the requirements of voluntariness, informed choice, judicial scrutiny and the public interest.

1. Voluntariness: there must be no impermissible coercion, threat or manipulation capable of undermining freedom of choice.

2. Informed choice: the defendant must understand the factual basis, the legal classification, the sanction and the rights being waived.

3. Effective legal assistance and judicial scrutiny: defence counsel must participate meaningfully, and the court must not act as a mere registrar of the agreement.

4. Public interest: the agreement must not produce an outcome that undermines the essential function of criminal justice.

13.3. Applicability to the North Macedonian model

The North Macedonian Law on Criminal Procedure formally contains the principal structural safeguards: mandatory defence counsel, a written agreement, judicial review and the possibility of rejection. The qualitative question is not only whether those elements exist in legislation, but how intensively they are applied in practice. Of particular significance is whether the court has sufficient factual material to assess independently whether the proposed sentence is justified.[8]

13.4. Council of Europe minimum standards

Additional European guidance is provided by Parliamentary Assembly of the Council of Europe Resolution 2245 (2018) on trial-waiver systems. It recommends mandatory participation of a lawyer, a minimum level of investigation and disclosure sufficient to enable an informed choice, and judicial review of the credibility and voluntariness of the admission and of the appropriateness of the sentence.[9]

These standards are especially relevant to “Chain”-type cases because they demonstrate that negotiated criminal justice must not be reduced to a private exchange between the prosecution and the defendant.

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[7] ECtHR, *Natsvlishvili and Togonidze v. Georgia*, no. 9043/05, Judgment of 29 April 2014, in particular the standards governing unequivocal and voluntary waiver of procedural rights, minimum safeguards against abuse and the public interest.

[8] Constitutional Court of the Republic of North Macedonia, U.br.254/2024, setting out the content of Articles 483-490 of the Law on Criminal Procedure and judicial scrutiny of a proposed plea agreement.

[9] Parliamentary Assembly of the Council of Europe, Resolution 2245 (2018), *Deal making in criminal proceedings: the need for minimum standards for trial waiver systems*, paras. 8.1-8.3.

The greater the penal exposure and the greater the public and financial significance of the case, the stronger the requirements of procedural information, documentary traceability and judicial scrutiny should be.

14. COMPARATIVE PERSPECTIVE: NEGOTIATED CRIMINAL JUSTICE IN THE EUROPEAN CONTEXT

14.1. Continental and Anglo-American models

The term *plea bargaining* is most commonly associated with the United States model, in which agreements concerning charges and sentence have exceptional practical significance. Continental European systems, however, traditionally start from a different premise: criminal procedure remains a public-law mechanism in which the court retains an independent duty to supervise legality and the factual basis. Comparison should therefore not be reduced to whether a state “has” or “does not have” plea bargaining, but should ask how far the parties’ negotiated autonomy extends and who retains the final word on sentence.

Continental models generally seek to preserve the principle that punishment is not a freely tradable commodity. The prosecutor may offer a procedural benefit and the defendant may waive part of the available procedural safeguards, but the court remains the guardian of legality. This structure is close to the North Macedonian model: the judge does not participate in negotiations, but reviews the proposed plea agreement. That distance also matters for impartiality - the court should not first become a negotiator and then act as arbiter of the agreement it helped to produce.

14.2. The German approach - agreement under judicial responsibility

The German experience with *Verständigung* in criminal proceedings is useful because it shows that negotiated justice can be incorporated even into a system with a strong inquisitorial tradition. The underlying idea is that certain aspects of the outcome may be the subject of procedural communication, but the court is not released from its responsibility for truth, legality and proportionality. It is particularly important that the agreement be transparent in the court record and that the defendant be informed of its consequences.[10]

The lesson for North Macedonian practice is not to transplant a foreign model mechanically, but to emphasise documentary transparency. In a complex case involving multiple defendants, a clear record of the factors taken into account is a precondition for later review. Otherwise, comparable cases may produce different results without allowing the legal profession to determine whether the distinction rests on facts or on divergent negotiating practice.

14.3. The Italian experience - constraining the negotiated space

Italian *patteggiamento* is another example of a European system that accepts a negotiated element while seeking to constrain it through statutory prerequisites and judicial review. Conceptually, such models show that any procedural benefit should be predictable and bounded, rather than the product of an informal individual bargain without clear standards. In cases involving substantial criminal proceeds, a particular issue is the relationship between the negotiated sentence and measures that remove the economic benefit of the offending.

This is relevant to “Chain” because fiscal restitution and punishment should not be analysed as though they belonged to the same category. Comparative models support the need for the court to consider the whole: culpability, gravity, guilty plea, benefit, confiscation and prevention. A simple formula of “money repaid - suspended sentence” would be excessively reductionist for complex financial crime.

[10] Bundesministerium der Justiz, *Strafprozessordnung* (StPO), § 257c. The provision permits a *Verständigung* concerning the course and outcome of proceedings, but retains judicial responsibility and does not displace the duty under § 244(2) StPO.

14.4. England and Wales - the formalised value of an early guilty plea

Although the legal system of England and Wales is structurally different, it offers a useful principle: the value of a guilty plea may be formally linked to the stage at which it is entered. An early plea genuinely saves more resources and may justify a greater reduction than a plea entered shortly before completion of the evidential proceedings. This enhances predictability: the defendant and defence counsel can assess the procedural consequence more reliably, while the court has a structured basis for its reasoning.[11]

The formalised reduction nevertheless has limits. It must not displace individualisation or operate automatically. An early guilty plea by the organiser of a prolonged scheme may be significant, but the weight of that role remains a separate consideration. The same plea by a peripheral participant who obtained minimal benefit may sit within an entirely different factual picture. That is why this paper proposes a matrix of factors rather than a single percentage reduction.

14.5. A common European denominator

Despite differences between models, several common European ideas can be identified: a negotiated outcome must be voluntary; the defendant must have effective legal assistance; the factual basis must not be fictitious; judicial scrutiny must be genuine; and the public interest remains relevant. Differences between systems concern technique and the degree of negotiated freedom more than these fundamental guarantees.

For the Republic of North Macedonia, the most useful approach would combine flexibility with transparency: sufficient space for prosecutors to negotiate in complex cases, but sufficiently clear criteria for defence counsel to anticipate what matters and for the court to determine whether the outcome is proportionate. Such a structure would reduce the risk of different prosecution teams developing different informal “tariffs” for similar cases.

15. THE RISK OF A TRIAL PENALTY AND PROTECTION OF THE RIGHT TO TRIAL

15.1. Incentive and pressure

Every plea-bargaining system necessarily creates an incentive to admit guilt. Without some procedural or sentencing benefit, a defendant has little rational reason to waive a full trial. The line between incentive and pressure, however, may become narrow where the possible sentence after trial is dramatically greater than the negotiated outcome.

15.2. The right to trial must not become an “expensive right”

A defendant must not be punished for requiring the prosecution to prove guilt. Prosecutorial and judicial practice should therefore avoid reasoning that effectively treats the decision to stand trial as an aggravating factor. What is relevant is only the absence of the particular mitigating procedural value that may attach to a timely guilty plea.

15.3. Particular risk in multi-defendant cases

In group proceedings, guilty pleas by the first defendants may create psychological and procedural pressure on those who remain. The defence may face a situation in which several co-defendants have already admitted parts of the prosecution narrative. The court must guard carefully against allowing one person’s admission, which has procedural consequences for that person, to replace the obligation to prove the case against the others.

[11] Sentencing Council for England and Wales, *Reduction in Sentence for a Guilty Plea - Definitive Guideline*, in force from 1 June 2017. The guideline links the level of reduction to the stage at which the plea is entered and stresses that pressure must not be placed on a defendant to plead guilty.

16. THE INSTITUTIONAL DIMENSION AND TAX CONTROL

16.1. From a private scheme to an institutional response

Later prosecutorial information concerning employees of the tax administration widens the analytical horizon, but requires precise legal differentiation. On 18 September 2024, the Public Prosecutor’s Office announced that it had filed charges against 15 persons employed in the General Tax Inspectorate and regional directorates of the Public Revenue Office. They were accused of the continued criminal offence of Abuse of Official Position and Authority under Article 353(4), read with paragraph 1 and Article 45 of the Criminal Code - not the offences of criminal association, tax evasion and money laundering that formed the principal prosecutorial line against some private-sector subjects. This distinction is essential in order not to create a misleading impression that the legal position of the different groups of accused persons is identical.[12]

16.2. Two distinct forms of responsibility

Institutional weakness may exist without criminal guilt on the part of a particular official: insufficient resources, poor methodology, inadequate data exchange or regulatory gaps may all contribute. Conversely, the criminal liability of a particular official does not establish that the entire system is dysfunctional. Scholarly analysis must examine these two levels in parallel without conflating them.

16.3. Preventive value of the case

The greatest institutional value of a complex case is not merely the number of persons convicted, but the system’s capacity to learn how the alleged scheme operated and which control signals were missed. Patterns involving fictitious documentation, circular transfers, unusual cash withdrawals and repeated links between entities may inform risk models and better tax control, provided that statutory safeguards are respected.

17. A PROPORTIONALITY MODEL FOR “CHAIN”-TYPE CASES

17.1. A six-layer test for the integrity of a negotiated outcome

The proposed model is consolidated into six questions that should remain separately visible: (1) legality and competence; (2) voluntariness and informed nature of the plea; (3) a sufficient factual basis and an individualised role; (4) clear separation of restitution, confiscation and punishment; (5) proportionality and comparability with relevantly similar defendants; and (6) reasons capable of supporting judicial, professional and public scrutiny without compromising the presumption of innocence. No one layer can automatically “compensate” for the absence of another: full restitution, for example, does not substitute for the voluntariness of the plea or the individualisation of sentence.

17.2. Analytical matrix

Criterion	Question/measure	Function
Role	organiser / co-ordinator / member / aider	measures the factual position
Intensity	number and duration of acts	distinguishes isolated from systematic conduct
Loss	individually attributable amount	not every group loss is an individual loss
Benefit	personal or corporate benefit obtained	relevant to confiscation
Restitution	amount, timing and voluntariness	mitigating, but not the sole factor

[12] Public Prosecutor’s Office of the Republic of North Macedonia, “Fifteen employees of the Public Revenue Office charged in ‘Chain’”, 18 September 2024. The statement refers to the continued criminal offence of Abuse of Official Position and Authority under Article 353(4), read with paragraph 1 and Article 45 of the Criminal Code.

Criterion	Question/measure	Function
Confiscation	proceeds recovered and substitute value	ensures that crime is not profitable
Guilty plea	procedural stage	measures genuine procedural saving
Co-operation	quality and result	asks whether new facts/assets were disclosed
Previous convictions	relevant criminal history	individualisation
Prevention	specific and general	wider function of sentence

The matrix should not be converted into a mathematical scoring system. Its function is to impose discipline on reasoning: the authority proposing or accepting a plea agreement should show that the relevant factors have been considered and explain how they affected the outcome.

17.3. Formula for a legitimate plea agreement

As an analytical formula, the following may be proposed:

LEGITIMATE PLEA AGREEMENT = voluntariness + informed choice + effective defence + sufficient factual basis + proportionate sentence + restitution/confiscation where relevant + genuine judicial scrutiny + protection of the public interest + reviewable reasoning.

The absence of one element will not necessarily invalidate an agreement automatically in every case, but it diminishes its institutional persuasiveness.

18. PRACTICAL APPLICATION: PROSECUTOR, DEFENCE COUNSEL AND COURT IN THE PLEA-BARGAINING PROCESS

18.1. The role of the public prosecutor

In plea bargaining, the public prosecutor does not act as a private party seeking the most advantageous bargain, but as the holder of a public office. The prosecutor must therefore assess simultaneously the evidential strength of the case, the gravity of the offence, the interest in prompt finality, the interests of restitution and confiscation, and the need for equal practice. In a multi-defendant case, the prosecutor should also conduct a horizontal check: is the offer made to one person explicable when compared with the offer made to another person in a similar role?

In practical terms, a sound prosecutorial approach should begin with a written “factor map” for each defendant: factual role, legal classification, individually attributable amount, state of the evidence, pecuniary benefit, prospects of confiscation, timing of the initiative to negotiate, and the value of any co-operation. Such an internal structure does not eliminate discretion; it makes it rational and explicable.

18.2. The role of defence counsel

Defence counsel has a duty to ensure that the decision to enter a plea agreement is genuinely informed. This requires more than explaining the proposed sentence. Counsel must assess the evidential risk, legal classification, possible objections, consequences for property, the legal entity, professional licences, future corporate management and possible civil-law consequences. In financial-crime cases, proprietary and professional consequences may sometimes have greater long-term significance than the custodial sentence itself.

The defence should be especially careful that the agreement does not contain factual formulations broader than those the defendant actually admits and broader than necessary for the legal classification. In multi-defendant proceedings, a formulation concerning the role of others may later be relevant in their cases. The factual basis of the agreement must therefore be read with care rather than treated as a formal annex to the sentence.

18.3. The role of the court

The court is the final institutional safeguard ensuring that a plea agreement remains part of criminal justice rather than a private contract. Scrutiny should encompass voluntariness, understanding of the consequences, the factual basis and the justification of the proposed sentence. In a case of substantial public interest, the judge should be particularly attentive to whether restitution and the guilty plea are sufficiently weighty factors to justify the proposed mitigation in light of the defendant’s role and the alleged loss.

Judicial scrutiny does not require the court to take the prosecutor’s place and reopen negotiations. Its strength lies precisely in the binary institutional power to accept the agreement where the legal and substantive conditions are satisfied or reject it where they are not. For that scrutiny to be genuine, the court must have enough material to assess the agreement, and a decision accepting it should demonstrate that the review has in fact been undertaken.

18.4. Proposed practical protocol

For “Chain”-type cases, a five-stage practical protocol may be introduced: first, an individual map of facts and evidence; secondly, a financial map of loss, benefit and assets; thirdly, an assessment of the procedural value of the guilty plea and co-operation; fourthly, comparison with other defendants in the case; and fifthly, written reasoning of the proposed sentence and a public-interest check. The protocol could function as a checklist for both prosecution and defence.

This approach has a further advantage: it reduces the extent to which the outcome depends on the individual bargaining strength of a particular lawyer or prosecutor. In a state governed by the rule of law, the quality of representation is a legitimate factor in proceedings, but the basic criteria governing sentence should not depend on who is the stronger negotiator. A structured methodology shifts the discussion from personal skill to legally relevant facts.

19. DE LEGE FERENDA PROPOSALS

19.1. Standardised reasoning for plea agreements

In major organised-crime, corruption and financial-crime cases, a standard form of reasoning should be developed covering role, loss, benefit, restitution, confiscation, procedural stage and the reasons for the particular type of sentence. Not every item need be made public, but all should be present in the case file and available for judicial scrutiny.

19.2. Express assessment of the public interest

In high-value cases, the prosecutor should explain expressly why the negotiated outcome serves the public interest. This would strengthen the distinction between mere procedural convenience and a plea agreement justified by legitimate criminal-policy considerations.

19.3. An anonymised database of plea agreements

A publicly accessible anonymised database recording legal classification, sentence, procedural stage, value of the loss, type of restitution and confiscation would permit the development of comparable practice. It would be useful to prosecutors, judges and lawyers while also reducing perceptions of unpredictability.

19.4. Statistics on rejected plea agreements

Aggregate statistics should also cover rejected agreements. The number of rejections and the broad reasons for them would show whether judicial scrutiny is genuine and in which categories of case courts consider a proposed sentence insufficiently justified.

19.5. Distinguishing a guilty plea from qualified co-operation

Prosecutorial guidelines should clearly distinguish a simple guilty plea from co-operation that leads to the discovery of new criminal proceeds, participants or evidence. This would allow greater benefit to be linked to greater procedural value rather than merely to a formal admission of guilt.

19.6. Limiting the influence of financial means

When restitution is assessed, the defendant’s financial capacity should also be considered so that wealth does not, by itself, create a sentencing advantage. Full payment is positive conduct, but it must not displace assessment of role, intent and the gravity of the offence.

19.7. A stronger methodology for confiscation

Early financial profiling, provisional securing of assets and tracing should be employed so that a final agreement is not reduced to a symbolic financial penalty while substantial criminal proceeds remain beyond reach. Confiscation should be planned from the beginning of the investigation, not at its end.

19.8. Guidelines on comparability among co-defendants

In group proceedings, it would be useful for the prosecution and the court to employ an internal comparability matrix. It would not bind them mechanically, but would assist in ensuring that differential treatment rests on visible facts and can be defended before the professional community.

19.9. Protection against a trial penalty

Guidelines should state expressly that a defendant must not be sanctioned for exercising the right to trial. Any greater sentence after trial must result from the absence of particular mitigating factors, not from “punishment” for a procedural choice.

19.10. Periodic public reporting

An annual aggregate report could present information on plea agreements: numbers, categories of offence, average procedural stage, restitution, confiscation and outcome. This would create an empirical basis for future scholarly analysis and for public assessment of efficiency without compromising the privacy of individuals.

20. SCHOLARLY CONTRIBUTION, LIMITATIONS AND VERIFIABILITY

20.1. Scholarly contribution

The paper’s scholarly contribution lies in combining three levels that are often analysed separately in domestic practice: (1) the procedural economy of plea bargaining and guilty pleas; (2) substantive individualisation of sentence; and (3) the economic dimension of restitution and confiscation. The proposed proportionality matrix is not a sentencing algorithm, but a method for testing whether the relevant reasons have been identified, compared and explained.

20.2. Limitations of the research

The principal limitation is the uneven availability of full judicial reasons. For some outcomes, the public has access to official prosecutorial statements or court information reported through the media, but not to the complete text of the judgment. The paper therefore deliberately does not rank judges, prosecutors or sentences and does not reach conclusions on the fairness of a particular outcome where all the facts relevant to individualisation are unavailable.

20.3. Verifiability and reproducibility

Every factual statement in the empirical section should be capable of being linked to a specific public source, date and procedural status. The final edition applies a hierarchy of sources: an official judicial or prosecutorial source; an official decision of the Constitutional Court or the ECtHR; and only then a relevant media source for information unavailable in a primary public source. This hierarchy reduces the risk that a media narrative will become the factual foundation of a scholarly conclusion.

Naming rule: initials are used in analytical tables where identity is unnecessary to the scholarly argument. A full name may be used only for a finally concluded procedural strand where this is necessary for verification against a public source; the different treatment must be explained in the methodological note rather than creating an impression of selective exposure.

21. CONCLUSIONS

1. The “Chain” case is relevant not only because of the prosecution’s description of complex financial crime, but also because of the different procedural mechanisms through which proceedings against multiple persons have been concluded or continue.

2. Plea bargaining and guilty pleas are legitimate instruments of modern criminal procedure. Their value lies in procedural economy, the possibility of more rapid restitution and the potential for co-operation, but they must remain subject to genuine judicial scrutiny.

3. An early guilty plea may legitimately carry greater procedural value than a late plea, but the sentencing differential must not make the right to trial a de facto “expensive” right.

4. Compensation for tax loss, return of criminal proceeds, confiscation, a fine and a custodial sentence perform different legal functions and should not be treated as interchangeable categories.

5. A defendant’s financial capacity must not, by itself, create a privileged position. Restitution is relevant, but it must be assessed together with role, intent, benefit, duration, co-operation and preventive objectives.

6. Different sentences among co-defendants are not proof of inequality. Inequality arises where comparable cases are treated differently without sufficiently objective and reasoned justification.

7. Reasoning is the central instrument for controlling prosecutorial and judicial discretion. The greater the public interest and financial value of the case, the stronger the requirement for transparency should be.

8. European standards permit plea bargaining but insist upon voluntariness, informed choice, legal assistance, judicial scrutiny and protection of the public interest. These elements should exist substantively, not merely formally.

9. One person’s guilty plea does not prove another person’s guilt. In group cases, the presumption of innocence and individual assessment of evidence must remain fully applicable.

10. For the future development of North Macedonian practice, the paper recommends standardised reasons, an anonymised database of plea agreements, statistics on rejected proposals, clearer guidance on restitution and confiscation, and a comparability matrix for co-defendants.

21.1. Final thesis

The most important lesson from “Chain” is not that plea bargaining is inherently good or bad. The point is that negotiated criminal justice is legitimate only where the particular outcome can be explained as the product of clear and equally applicable principles. Efficiency is a value, but it is not the only value. Criminal justice must simultaneously be as swift as reasonably possible, as severe as necessary, as individualised as the facts require and as transparent as the public interest demands.

The final test, therefore, is not how many cases have been concluded through plea agreements, how much money has been returned, or how many years of imprisonment have been imposed. The final test

is whether the system can convincingly explain why a particular defendant, with a particular role, particular benefit, particular restitution and particular procedural contribution received that particular outcome. Where the explanation is clear, negotiated criminal justice strengthens the legitimacy of the system. Where it is absent, even formally lawful efficiency may leave room for doubt about consistency and equality.

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Lawyer Zoran Stojankich, Skopje. The paper was prepared as a scholarly and professional legal analysis of a current complex criminal-law case, with the aim of developing practically applicable criteria for assessing plea bargaining, guilty pleas and sentencing policy in organised financial-crime cases.

STATEMENT ON SOURCES, TEMPORAL CUT-OFF AND NEUTRALITY

The factual cut-off for the case is 26 September 2026, while the final editorial verification of publicly available sources was completed on 28 September 2026. Institutional sources take precedence over media sources; a media source is used only where the relevant information is unavailable in a primary public source and its status is clearly identified. The paper does not rank defendants, prosecutors, judges or particular sentences, and does not presume guilt beyond that established by a final and binding judgment.